

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 1, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV00279

SABA v. GENERAL MOTORS, LLC

DEFENDANT’S MOTION FOR RECONSIDERATION

The motion is denied.

Defendant GM (“GM”) seeks an order from the Court pursuant to Code of Civil Procedure section 1008, reconsidering the Court’s imposition of \$250.00 in sanctions against it.

On November 13, 2025, GM failed to appear at a further case management conference hearing and failed to file a case management conference statement. As a result, the Court set an Order to Show Cause hearing for February 23, 2026. GM’s counsel was ordered to file a sworn declaration in response to the Order to Show Cause and a case management conference statement before the next hearing. GM’s counsel appeared at the February 23, 2026, Order to Show Cause hearing. At that hearing, the Court noted that while GM filed a case management conference statement, GM’s counsel had not filed a sworn declaration in response to the Order to Show Cause, as previously ordered at the November 13, 2025 hearing. The Court then imposed \$250.00 in sanctions against defense counsel to be paid to the Court.

GM’s counsel asserts he erroneously failed to file the declaration as required. (Decl. of Rodriguez at ¶ 6.) GM states that its original failure to appear was due to a calendaring error. GM contends that it erred again by failing to file the sworn declaration before the February 23, 2026, hearing. GM argues that after the order of sanctions, it discovered that the declaration was drafted but inadvertently not filed. GM argues that “[d]ue to the original clerical error for the first Case Management Conference, and then our subsequent error with the OSC hearing by

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 1, 2026 TIME: 8:30 A.M.

failing to file the declaration, we ask the Court to reconsider its sanctions.” (Memorandum of Points and Authorities “MPA” at p. 5.) There is no opposition.

Code of Civil Procedure section 1008, subdivision (a) provides that, “[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.”

First, the motion is not timely. A motion for reconsideration must be within ten days after service of written notice of entry of order. The Minute Order from the February 23, 2026 hearing, was served on March 4, 2026. This motion was not filed until April 10, 2026.

Second, even if the motion were timely, GM has failed to show “different facts, circumstances, or law.” The Court issued sanctions because GM failed to file a sworn statement, as ordered, in response to an OSC. GM does not dispute that it failed to file the statement. Therefore, there is no basis to reconsider the sanctions imposed as there are no different facts, circumstances, or law.

No. 25CV01089 UPDATED FROM PRIOR POSTING OF MAY 22, 2026

SC BLOOM NETWORK, INC. v. OLD REPUBLIC TITLE CO.

DEMURRER TO FIRST AMENDED COMPLAINT

DEFENDANT’S MOTION TO STRIKE

The demurrer is sustained without leave to amend. Plaintiffs’ claims are time-barred. The motion to strike is denied as moot.

I. BACKGROUND AND FIRST AMENDED COMPLAINT

This case, and an associated case filed in Santa Clara County in 2020, are the culmination of allegedly fraudulent business transactions related to a cannabis business. Will Sump and Nate Ready formed RS Enterprise, LLC (“RS Enterprise”) to purchase and hold title to real property at 236 Encinal Street. Sump was the majority member and chief executive and Ready the minority member and